

HOUSE No. 340

The Commonwealth of Massachusetts

PRESENTED BY:

Tackey Chan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to clarifying the self-storage law for consumers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>1/10/2025</i>

HOUSE No. 340

By Representative Chan of Quincy, a petition (accompanied by bill, House, No. 340) of Tackey Chan for legislation to clarify self-storage laws. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4504 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to clarifying the self-storage law for consumers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 105A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the definition, “Abandoned lease space” and
3 inserting in place thereof the following definition:-

4 “Abandoned leased space”, (i) a leased space that the operator finds unlocked and empty
5 or unlocked and containing personal property with a value less than \$300, in the operator's
6 opinion, (ii) a leased space, which possession, all rights to and any personal property within has
7 been affirmatively surrendered to the operator by the occupant; or (iii) a leased space containing
8 personal property upon the end of the rental agreement.

9 SECTION 2. Said section 1 of said chapter 105A of the General Laws, as so appearing, is
10 hereby further amended by inserting at the end of the definition of “Rental agreement”, the
11 following new sentence:- A rental agreement may be delivered and accepted electronically.

12 SECTION 3. Section 2 of chapter 105A of the General Laws, as so appearing, is hereby
13 amended by inserting after the first sentence the following new sentence:- The occupant shall be
14 bound by the rental agreement, even if unsigned, if the occupant uses the leased space more than
15 30 days after delivery of the written notice of the rental agreement to the occupant.